



**Bureau of Experts at the Council of Ministers
Official Translation Department**

**Law on Fertilizers and Agricultural Soil Conditioners in Member States of the
Cooperation Council for the Arab States of the Gulf**

Royal Decree No. M/47
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Translation of Saudi Laws

NOTES:

1. This translation is provided for guidance. The governing text is the Arabic text.
2. The translation of Saudi laws takes the following into consideration:
 - Words used in the singular form include the plural and vice versa.
 - Words used in the masculine form include the feminine.
 - Words used in the present tense include the present as well as the future.
 - The word “person” or “persons” and their related pronouns (he, his, him, they, their, them, and who) refer to a natural and legal person.

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Law on Fertilizers and Agricultural Soil Conditioners in Member States of the Cooperation Council for the Arab States of the Gulf

Article 1

This Law aims to regulate the production, import and trade of fertilizers and agricultural soil conditioners in the states of the Cooperation Council for the Arab States of the Gulf.

Article 2

The following terms and phrases shall have the meanings assigned thereto, unless the context requires otherwise:

The GCC: The Cooperation Council for the Arab States of the Gulf.

GCC States: States in the Cooperation Council for the Arab States of the Gulf.

The Supreme Council: The Supreme Council of the Cooperation Council for the Arab States of the Gulf.

Secretariat General: The Secretariat General of the Cooperation Council for the Arab States of the Gulf.

The State: A member state of the Cooperation Council for the Arab States of the Gulf.

The Ministry: The Ministry of Agriculture or the authority responsible for agriculture in the state.

Minister: The minister responsible for agriculture or the head of the responsible authority.

Competent authority: The agency responsible for everything related to fertilizers and agricultural soil conditioners.

Law: Law on Fertilizers and Agricultural Soil Conditioners.

Entry point: Air or sea ports or land border points designated as entry point for shipments (consignments).

Trade: Selling or offering for sale, storing or possessing, whether permanently or temporarily, or transferring by any means.

Beneficial Organisms: Any organism, including fungi, bacteria, viruses, virus-like organisms and invertebrates, declared by the Minister to be beneficial to flora or agricultural production.

Soil: Material extracted partially or wholly from the upper layer of the earth's crust capable to nourish plants.

Fertilizers: Materials that provide plants with their nutritional needs and help the soil maintain its fertility and productive capabilities.

Chemical Fertilizers: Synthetically prepared chemical compounds that exist naturally and contain nutrients for plants.

Organic Fertilizers: Plant or animal waste, or a mixture of both, containing nutrients for plants and the necessary organic materials to improve the physical and chemical properties of the soil.

Agricultural Soil Conditioners: Materials that repair and improve soil properties.



Microorganisms: Very small living organisms added to soil or seeds in order to fix atmospheric nitrogen in plant roots, or decompose materials in the soil to make it suitable for plant use or enhance soil properties.

Phytosanitary Certificate: A certificate modeled on the standard certificates of the International Plant Protection Convention.

Licensing: Permission granted by the competent authority to trade fertilizers and agricultural soil conditioners.

Registration: The process of evaluating the comprehensive scientific data that demonstrates the effectiveness of a fertilizer for its intended use, and ensures it poses no risk to human or animal health or the environment in general. Based on such evaluation, approval of its import and trade is granted and included in the records of the competent authority under a specific number, and issued with a registration certificate per a specific form.

Shipment (consignment): Any quantity of fertilizers or agricultural soil conditioners which are imported for the purpose of use or trade and circulation in the state.

In-Transit Shipment: Any shipment arriving in a country and is destined for another country, without it being divided into smaller units or having its containers changed in the first country.

Importer: Any natural or legal person, whether an owner, shipper, consignee, agent, broker or any other person who owns or has the right to own any fertilizers, agricultural soil conditioners, beneficial organisms, or all kinds of soils, arriving or set to arrive from another country.

Implementing Regulations: The implementing regulations issued in implementation of this Law.

Article 3

The provisions of this Law shall apply to the following:

First: Fertilizers

Fertilizers are divided into the following types:

1. Chemical fertilizers, which are:

- a) Fertilizers made up of one basic primary inorganic nutrient (nitrogen fertilizers, phosphate fertilizers, and potassium fertilizers).
- b) Fertilizers made up of compound inorganic primary nutrients:
 - NPK fertilizers
 - NP fertilizers
 - NK fertilizers
 - PK fertilizers
- c) Inorganic liquid fertilizers, which include:
 - Basic fertilizers, either in liquid, suspension, or paste form, or in the form of compressed gasses such as ammonia.
 - Compound fertilizers, either in liquid, suspension, or paste form.



d) Inorganic fertilizers of secondary nutrients, which include:

- Calcium (ca)
- Magnesium (Mg)
- Sulfur (s)

e) Inorganic micronutrient fertilizers:

- Simple micronutrient fertilizers that contain only one element: iron (Fe), zinc (Zn), copper (Cu), manganese (Mn), boron (B), chloride (Cl), and molybdenum (MO)
- Compound micronutrient fertilizers which contain more than one nutrient.

2. Organic fertilizers.

Second: Agricultural soil conditioners:

These include the following:

1. Soil conditioners, which are:

- Organic conditioners.
- Inorganic conditioners.

2. Microorganisms.

Article 4

The Minister shall, subject to a proposal from the competent authority, issue decisions specifying the types of permitted fertilizers and agricultural soil conditioners, their specifications, and the conditions and procedures for their use and trade in the state. Such decisions shall specify the following in particular (such decisions shall specifically define/specify the following):

- a) The specifications for packaging and labeling of fertilizers and agricultural soil conditioners, and the information to be included.
- b) The conditions and procedures for examining and analyzing fertilizers and agricultural soil conditioners, estimating the extent of their viability and the procedures to be followed in appeal or grievance laws as well as ways to resolve them.
- c) Procedures to be followed relating to fertilizers and agricultural soil conditioners violating the provisions of this Law and the decisions implementing it.

Article 5

The competent authority in the state shall determine the fees due in accordance with the provisions of this Law and its Implementing Regulations.

Article 6

The competent authority shall register fertilizers and agricultural soil conditioners that may be imported, exported, manufactured, traded or used in the state.



Article 7

1. The import or trade of fertilizers and soil conditioners, as stipulated in the previous Article, is not permitted without obtaining the necessary license from the competent authority, with the following exceptions:
 - a) Fertilizers and agricultural soil conditioners used by universities and research centers for scientific research, provided that approval is obtained from the competent authority.
 - b) Fertilizers and agricultural soil conditioners imported for re-export, provided they do not cross the state's entry points. After taking the necessary precautions and coordinating between customs and quarantine authorities, the shipment may be transferred from one entry point to another for the purpose of export.
2. It is not permitted to manufacture, prepare, or formulate any type of fertilizer without obtaining a license from the competent authority.

Article 8

No shipment (consignment) may enter the state without a phytosanitary certificate issued by the responsible governmental authorities in the country of origin confirming it is free from weed seeds and harmful microorganisms such as bacteria, fungi, viruses, and nematodes as well as harmful insect and animal pests. The certificate must be accompanied by a certificate of analysis stating that it is free of heavy and radioactive elements.

Article 9

The Minister may, upon the recommendation of the competent authority, ban the production, manufacture, export, import or trade of any type of fertilizers and agricultural soil conditioners, either permanently or temporarily, whenever the public interest so requires.

Article 10

Official employees with judicial recording capacity shall have the right to enter premises the activities of which fall within the provisions of this Law to ensure compliance and record violations of its provisions or other similar provisions.

Article 11

Each state, at its own discretion, shall determine the penalties and fines to be imposed on any person who violates the provisions of this Law or its Implementing Regulations.

Article 12

1. The Minister may issue the Implementing Regulations of this Law or amend them as he deems necessary in the public interest in accordance with the provisions of this Law and the standards and requirements set by the relevant international agreements.
2. The Secretariat General shall be notified of the Implementing Regulations issued or any amendment thereto.



Article 13

Any person adversely affected by the decisions issued in the implementation of the provisions of this Law may appeal to the Minister in accordance with the grievance laws in place in each state.

Article 14

Any amendment to this Law must be agreed upon by the member states and shall not enter into force until approved by the Supreme Council, and the same procedures stipulated in Article 15 shall apply to its enforcement.

Article 15

This Law shall be mandatory and shall enter into force six months after its approval by the Supreme Council.